

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 996

Introduced by Rountree, 3.

Read first time January 13, 2026

Committee:

- 1 A BILL FOR AN ACT relating to juvenile justice; to amend section 43-431,
- 2 Revised Statutes Cumulative Supplement, 2024, and section 43-2,129,
- 3 Revised Statutes Supplement, 2025; to prohibit the use of shackling
- 4 on juveniles as prescribed; to define a term; to change provisions
- 5 relating to policies and procedures regarding the transportation of
- 6 juveniles; to harmonize provisions; and to repeal the original
- 7 sections.
- 8 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) Except as provided in this section, a person shall
2 not restrain a juvenile using shackling.

3 (2) A person who is authorized by law to restrain a juvenile may use
4 shackling to restrain such juvenile only if:

5 (a) The juvenile presents a substantial risk of inflicting physical
6 harm on himself or herself or others as evidenced by recent behavior;

7 (b) No less restrictive alternative will prevent such risk of harm;
8 and

9 (c) The use of shackling is limited to the duration strictly
10 necessary to prevent the risk of such harm.

11 (3) This section does not apply to the use of restraints under
12 section 43-251.03.

13 (4) For purposes of this section:

14 (a) Shackling means the use of any mechanical restraint, including
15 handcuffs, leg irons, waist chains, belly chains, ankle restraints, a
16 restraint chair, or any combination of such devices, that restricts the
17 movement of a juvenile's arms, hands, legs, waist, or torso; and

18 (b) Shackling does not include the brief, temporary use of handcuffs
19 solely to address an immediate and articulable safety risk if such
20 handcuffs are removed as soon as such risk has passed.

21 **Sec. 2.** Section 43-2,129, Revised Statutes Supplement, 2025, is
22 amended to read:

23 43-2,129 Sections 43-245 to 43-2,129 and section 1 of this act shall
24 be known and may be cited as the Nebraska Juvenile Code.

25 **Sec. 3.** Section 43-431, Revised Statutes Cumulative Supplement,
26 2024, is amended to read:

27 43-431 Policies and procedures of the Department of Health and Human
28 Services regarding the transportation of juveniles placed at the youth
29 rehabilitation and treatment centers shall apply to any private
30 contractor utilized by the Office of Juvenile Services to transport
31 juveniles placed at the youth rehabilitation and treatment centers. Such

1 policies and procedures shall prohibit the use of shackling in violation
2 of section 1 of this act and shall prohibit the routine use of any
3 mechanical restraint on juveniles during transportation. Any exception
4 shall be narrowly limited, documented in writing, and subject to review.

5 **Sec. 4.** Original section 43-431, Revised Statutes Cumulative
6 Supplement, 2024, and section 43-2,129, Revised Statutes Supplement,
7 2025, are repealed.